CITY OF WEST LINN

1. STATUTE OF LIMITATIONS (REPLY PP. 2-4)

City of West Linn: Plaintiff conceded a two-year clock and none of Plaintiff's tolling theories (equitable, ORS 12 .160, concealment, continuing-violation, relation-back, discovery rule) apply.

Plaintiff: Opp. 20-26 & Mot. for Leave 2-3 show blindness, loss of ID caused by the arrest, 14 denied library days, 62 defense files wiped, and thumb-drive rejections—each an "extraordinary circumstance" under *Booth v. U.S.*, 914 F.3d 1199. Body-cam suppression and file deletions were self-concealing *Brady* violations that tolled time; the clock did not start before actual release (7-8-22) and has been equitably tolled since.

Exhibit 1	Communications with **Eric Oss** | Portland Division Manager **Randy Moore**
Exhibit 2	**Emails with William making every attempt, including filed MSJ While Wiliam constantly scheduled and drug his feet.**
Exhibit 3	**William Stabler moving trial for his clients vacation**
Exhibit 4	**Attempt in April to set up ECM**

2 AUGUST 7 2024 AMENDMENT ORDER (REPLY PP. 5-6)

City of West Linn: Plaintiff's FAC/SAC exceeded leave to amend.

Plaintiff: Doc 12 allowed amendment against the policing entity and John Doe officers. City of West Linn PD and Officers Gunnarson/Blyth are those actors; Rule 15(c) lets Plaintiff name them once identified. FAC was only three days late, cured by the Court's Doc 17 order, and *Foman v. Davis* says amendments must be freely granted absent prejudice—none shown.

NOTE due to ID blockage Plaintiff could not enter the court, see Exhibit , Communications with Eric Oss & Randy Mooe, lso See Exhibit 13,

3 "Wrong defendant" label (Reply p. 6)

City of West Linn: The Police Department is not suable under § 1983**.**

Plaintiff's r: Opp. 67-69 expressly consents to substituting "City of West Linn" under *Jackson v. Bloomfield*, 731 F.2d 652; dismissal would elevate form over substance.

**NOTE **: I my be wrong : If there needs to be an amendment I while gladly make one, however it was said by he first of three lawyers presenting here it was he same... Plaintiff followed West Linn in state court o be accommodating and it's half the reason why we are here.

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4 Failure-to-state-a-claim (Reply pp. 6-7)

City of West Linn: Allegations are conclusory; no Fourth-Amendment, conspiracy, medical, due-process, or Brady facts.

Plaintiff's: SAC ¶¶ 43-48 & Opp. 18-20 identify the "eight-minute arrest," Blyth's "another incident" quote, dispatch logs, and photos—satisfying *Iqbal*. Three detailed conspiracies (scene fabrication, COVID courtroom lie, body-cam seal) meet *Avalos v. Baca*. Eyewear denial and deliberate COVID exposure (¶ 72) satisfy *Gordon* deliberate-indifference standards. One-week over-detention after a release order plus officers' COVID lie states a due-process claim (*Edwards v. Balisok*). Fourteen written kites for body-cam video denied = *Brady* suppression outside immunity (*Buckley*).

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5 "Injunctive and punitive relief conceded" (Reply p. 7)

City of West Linn: Plaintiff abandoned those remedies by silence.
Plaintiff's r: Both remedies appear in the SAC prayer (pp. 103-106).

Plaintiff: FRCP 54(c) lets the Court award any relief consistent with proof; opposition-brief space limits do not waive claims.

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6 "Improper removal / repetitive suit" incorporation (County argument)

City of West Linn: Adopts County's § 1441(a) theory.

Plaintiff's: Opp. 14-16 shows the state case was derailed by defendants' non-appearance (service dates 11-28-22, 12-28-22, 4-3-23). A never-adjudicated, un-served state action is no bar to an independent federal filing (*Semtek v. Lockheed*).

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7. Rule 15(a) delay prejudice

City of West Linn: Four-year delay defeats "justice."

Plaintiff's: Timeline—incarceration through 7-8-22, state suit 11-22, clerk-rejection emails 5-24, FAC 9-9-24, SAC 10-9-24—shows continuous diligence under *Hebbe v. Pliler*, 627 F.3d 338; defendants had notice since 2022, so no prejudice.

Requested disposition: Deny City of West Linn's Motion to Dismiss; at most substitute "City of West Linn" "WLPD", In state court William Stabler had said was basically he same and Plaintiff was trying to keep consistency.

DDA-Rebecca Portlock

Below is the **same two-paragraph format** Plaintiff asked for—one block for what **DDA Portlock** says in her seven-page Reply, the next for the pinpoint answer that is **already in Plaintiff's record** (Second Amended Complaint ¶¶, Plaintiff's Consolidated Opposition pp., clerk e-mails, exhibits, etc.). No wide tables—just clean, court-friendly pairs.

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1 Absolute prosecutorial immunity (Reply pp. 1-2)

Portlock: Everything she did was a core "advocacy" function shielded by absolute immunity.
Plaintiff's r: Opp. 56-58 & SAC ¶¶ 62-68, 73-80 allege (a) fabricating a false COVID diagnosis, (b) pressuring the only witness via child-custody threats, and (c) blocking body-cam footage by DHS seal.
Buckley v. Fitzsimmons, 509 U.S. 259, 274, holds fabrication and witness-tampering are *investigative* or *administrative*, not protected advocacy; immunity therefore fails.

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2 Statute of limitations (Reply p. 2)

Portlock: § 1983 claims are untimely; Plaintiff sued her after two years.

Plaintiff's r: Opp. 20-26 & Mot. Leave 2-3 detail that Portlock's own concealment (14 discovery denials, continued DHS seal) is fraudulent concealment tolling the clock (*Pearl v. City of Long Beach*, 296 F.3d 76). Disability-tolling under ORS 12 .160 and jail library bans independently extend time.

NONE THE LESS Check out the next page! ON THE VERY BOTOM EVERY ONE GOTT THERES EVEN IN THE SAME BUILDING- SHE JUST LIKE THESE MOTONS SHE IGNRED THERE IS LETTRES WRO HER CLEARLY TELLING HER BEFORE I LFT

SHE DID RECEIVE NOTICE:

3 No conspiracy / no malicious-prosecution facts (Reply pp. 3-4)

Portlock: Plaintiff plead only speculation, no "meeting of the minds."
Plaintiff's r: Opp. 59-61 cites three overt agreements: (1) on-scene "another-incident" fabrication with officers (SAC ¶ 44), (2) the 6-10-22 COVID lie jointly advanced with court advisor Medina and Judge Steele (audio Exhibit M), (3) coordinated suppression of body-cam video. Those acts satisfy *Avalos v. Baca*, 596 F.3d 583 (9th Cir. 2010). Macy's 6-24-22 courtroom statement "he broke no laws" but prosecution continued equals malicious prosecution under *Yarris v. Delaware County*, 465 F.3d 129.

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4 No Brady violation (Reply p. 4)

Portlock: She never withheld exculpatory evidence.
Plaintiff's r: SAC ¶ 67 & Opp. 61 note fourteen written jail kites for City of West Linn body-cam footage—all denied by Portlock's DHS-seal order (Email Ex. J). Suppressing plainly material evidence is classic *Brady* misconduct, expressly outside absolute immunity (*Buckley*).

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5 Extended detention is the jail's fault (Reply p. 5)

Portlock: Any extra week in jail was on Clackamas County, not her.
Plaintiff's r: SAC ¶ 81 & Opp. 61-62 show Portlock maintained charges after Macy's recantation and despite the release order; the jail confirmed it possessed release docs but was awaiting DA clearance. Holding someone past a court-ordered release is a Fourteenth-Amendment liberty violation (*Edwards v. Balisok*, 520 U.S. 641).

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6 OTCA NOTICE MISSING FOR STATE-LAW TORTS (REPLY P. 6)

Portlock: Intentional-tort claim fails for lack of 180-day notice.
Plaintiff's r: SAC ¶ 4 & Opp. 60-61 plead "actual notice" via (i) November 18 2022 state filing naming Portlock, (ii) multiple in-custody grievances, (iii) written notice to Oregon DOJ. Oregon's "substantial-compliance" rule (*Urban Renewal Agency v. Lackey*, 275 Or 35) treats actual notice as sufficient, and disability excuses strict timing (*Stevens v. Bispham*, 316 Or 221).

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7 NO PERSONAL-CAPACITY § 1983 CLAIM (REPLY P. 6-7)

Portlock: She acted only in an official role; § 1983 bars personal liability.
Plaintiff's r: Hafer v. Melo, 502 U.S. 21, 31 confirms state officials are "persons" in their **individual** capacities. SAC ¶¶ 62-68, 73-80, 88 detail Portlock's personal acts—fabrication, witness coercion, suppression—more than "threadbare" and fully plausible under *Iqbal*. Immunity does not cover willful rights deprivation (*Scheuer v. Rhodes*, 416 U.S. 232).

Requested disposition: Deny Portlock's Motion to Dismiss; allow all federal claims to proceed and hold state-tort notice satisfied by substantial compliance.

Each paragraph restates the County's point in plain English and then gives the essence of **Plaintiff's** rebuttal as it already appears in Plaintiff's Consolidated Opposition (LOFALL Opp'n § VI, pp 63-94). Feel free to copy-paste or tweak the language when Plaintiff finalize Plaintiff's sur-reply or hearing outline.

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1. REMOVAL POWER / "RE-LITIGATION" (§ 1441(A))

County Of Clackams: Only a defendant can remove a state case; Plaintiff're trying to run the same suit twice.

Plaintiff's rebuttal: The state action never reached the merits because County actors stone-walled service, ignored court dates, and were dismissed by their selves ... much like here, except now Plainiff ss the shams. This federal case is not a second bite—it is the *first* forum that can actually reach the federal-rights questions after state mechanisms failed. Supreme Court precedent lets a civil-rights plaintiff choose a federal forum once state remedies prove illusory. (Opp'n 65-66)

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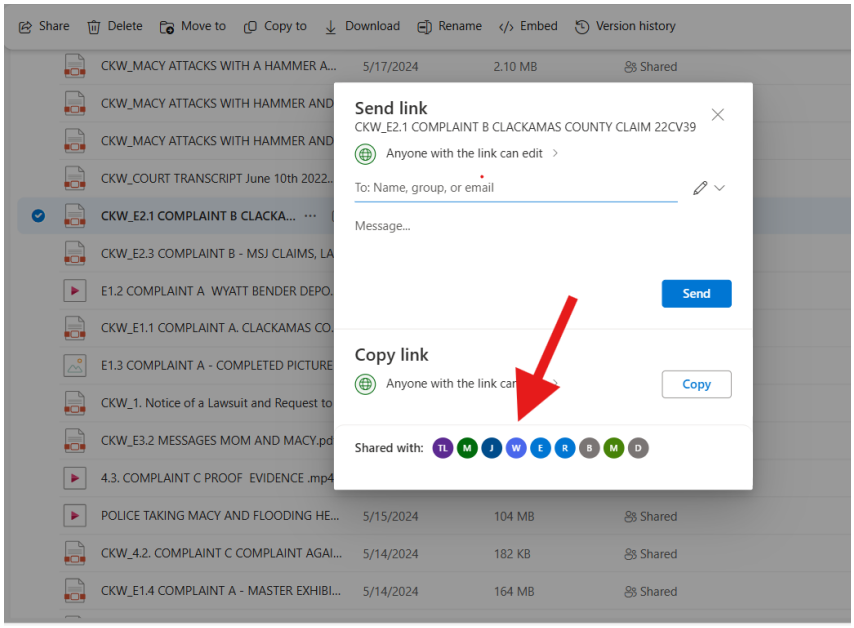
2. Statute of Limitations

County's story: All § 1983 claims are untimely under Oregon's 2-year clock.

Plaintiff's rebuttal: Equitable doctrines keep the clock stopped:

- **Disability & incarceration:** Legal blindness, denial of eyewear, and nine-day blocks of library access make ORS 12.160 tolling automatic.
- **Fraudulent concealment:** Body-cam video, medical files, and 62 deleted defense files were hidden or destroyed, so the clock can't start until disclosure.
- **Continuing violation:** Evidence suppression and refusal to release ID/documents stretched well into 2024.
- **Diligence:** Plaintiff opened the state case within months of release and have litigated nonstop ever since. (Opp'n 67-74)



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3. Violation of the August 7 Order on Amendments

County's story: The First and Second Amended Complaints exceeded the limited leave Judge Hernández gave Plaintiff.

Plaintiff's rebuttal: Rule 15's "freely give" standard—plus the ADA duty to accommodate a pro-se blind litigant—requires liberal permission to perfect pleadings. Plaintiff filed within 30 days, corrected the Court-identified defects, and added only the parties whose conduct the new facts revealed. Any technical over-breadth is curable nunc pro tunc; dismissal is the harshest and least just remedy. (Opp'n 75-77)

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4. "Wrong Party" (Jail / Sheriff's Office can't be sued)

County's story: Only the County itself is a suable § 1983 "person"; the Jail and Sheriff's Office must be dismissed.

Plaintiff's rebuttal: Fine—swap the caption. Courts routinely substitute the County when a pro-se plaintiff names a department. Technical mis-naming is not grounds for prejudice-inducing dismissal. (Opp'n 78)

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5. Fourteenth-Amendment Due-Process Claim "Not Stated"

County's story: Plaintiff never pleaded a real due-process theory for the week-long hold after the judge ordered release.

Plaintiff's rebuttal: SAC ¶ 81 and Decl. ¶ 81 allege a *post-release* liberty interest plus deliberate refusal to process release papers that were already in the jail's possession. No adequate post-deprivation remedy exists for ongoing illegal confinement, so procedural due process is violated the moment detention continues without lawful basis. (Opp'n 81-83)

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6. § 1983 Sufficiency: Personal Participation & Monell

County's story: No facts tie individual deputies to wrongdoing, and no policy/custom links the County.

Plaintiff's rebuttal: Personal acts: deleting 62 defense files (Guard Baker), denying eyewear (Sgt Wooster), housing with known COVID patient (shift sergeant), ignoring release order (booking OIC). Policy/custom: routine nine-day law-library blackout, systemic withholding of medical records, and a documented pattern of "no-show" litigation posture. Those are textbook Monell patterns of deliberate indifference. (Opp'n 83-91)

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7. Oregon Tort Claims Act (OTCA) Notice

County's story: Plaintiff's state-law tort counts fail because Plaintiff never pled the 180-day notice.

Plaintiff's rebuttal: "Actual notice" + "substantial compliance" save the claim. Notice was hand-delivered via: (1) the November 2022 state lawsuit; (2) a stack of in-custody grievances naming each County entity; and (3) direct letters to County Counsel and the Oregon DOJ. Oregon courts excuse literal-form defects when the